

1. Scope:

- a. You will have to execute complete civil works including design & engineering as per scope, terms, conditions, specifications, plans, layouts, drawings and bill of quantities applicable for the tender under reference and as approved by MSETCL. You have already confirmed your full understanding and knowledge of the scope, terms, conditions, specifications, plans, layouts, drawings and bill of material and you hereby confirm the receipt of the same. Please note that early completion of this project for MSETCL is the fundamental governing principal of this work order.
- b. Any soil Investigation as and when required by MSETCL shall be in your scope.
- c. The scope of MAEIPL shall be limited to monitoring of the works.

2. Contract Rates and Contract Value:

- i. You will execute this contract as per unit rates for different items in the BOQ attached herewith as **Annexure-A**.
- ii. The total sub-contract value as per MSETCL's estimated quantities comes to **Rs. 6,39,78,979/- (Rs. Six Crore Thirty-nine Lakhs Seventy-eight Thousand Nine hundred & Seventy-nine Only)**. However, payment will be limited to actual work executed by you as per measurements accepted by MSETCL.
- iii. The quantities of different items may vary as per site conditions and requirements of MSETCL as well as MAEIPL. During the execution of the contract, MAEIPL reserves the right to increase (or) decrease the quantities of any or all items under the contract as well as scope of works, without any change in unit rates and other terms & conditions.
- iv. The unit rates and the contract value are inclusive of Goods & Services Tax (GST), labour cess and all other taxes, levies, duties, cess and any other statutory liabilities in whatever names they may be called. However, you shall submit invoice with clear bifurcation of taxes as per applicable laws and statutory rules.
- v. **GST will be paid only upon submission of documentary proof of payment to the department, failing which MAEIPL shall deduct the same from your bills along with applicable interest and penalty.**
- vi. The unit rates are inclusive of labour charges, power supply arrangement, oil & fuel, transportation, equipment & machinery, tools & tackles, safety apparatus, store management, supervision, overheads, finance charges, insurance, profits and all other expenses including incidentals required, in both present and future, for the execution of this contract.
- vii. Any extra item shall be payable only if the same is approved and paid by MSETCL to MAEIPL.
- viii. All the rates shall be on firm basis and no price variation is applicable, in any event, including in the extended period of time, if any.

3. Security Deposit:

Since you have expressed inability to submit PBG, you shall submit a Security Cheque with promissory note equivalent to 10% of the work order value within a month after issuance of this work order for securing your performance under this work order. This cheque shall be returned on completion of all your obligations under this work order or on submission of a fresh security cheque to cover guarantee (defect liability) period.

4. Time Limit:

- a. Time is the essence of this contract. Time limit for the completion of entire works in your scope shall be **9 (Nine) calendar months (Including Monsoon)** from the date of this contract. However, critical work of GIS hall shall be taken up on top priority and shall be completed in **8 (Eight) calendar months**, as subsequent electrical work is dependent on the same, failing which liquidated damages shall be applicable.
- b. You shall submit a detailed bar chart within 15 days from the date of receipt of this work order and shall strictly adhere to the same, failing which MAEIPL reserves the right to terminate this contract at your risk and cost.
- c. Upon completion of works under your scope, you shall obtain certificate from the concerned MSETCL authority stating that no work is balance and completed works are to the entire satisfaction of MSETCL.

5. Payment terms:

- a. 90% payment calculated as per unit rates for the quantities of work completed and accepted by MSETCL shall be made by account payee cheque within 3 working days from the date of receipt of corresponding payment by MAEIPL from MSETCL.
- b. All deductions (including LD) made by MSETCL against bills for the scope executed by you shall be applicable to you on back-to-back basis.
- c. 10% Retention: Balance payment retained from all bills shall be released by account payee cheque within three working days after i. Receipt of corresponding payment from MSETCL. ii. Completion of the entire works in your scope iii. Deduction of liquidated damages (if levied by MSETCL against your scope) iv. Removal of all defects and non-compliances pointed out by MSETCL v. Submission of equivalent security cheque with promissory note. vi. Submission of No-Claim certificate.
- d. Advance: In case any advance is paid to you at our discretion, then same shall be recovered from your bills with monthly compounding interest at 18% p.a.

6. Taxes and duties

- a. The unit rates and the contract value are inclusive of Goods & Services Tax (GST), labour cess and all other taxes, levies, duties, cess and any other statutory liabilities in whatever names they may be called. However, you shall submit invoice with clear bifurcation of taxes as per applicable laws and statutory rules.
- b. GST will be paid only upon submission of documentary proof of payment to the department, failing which MAEIPL shall deduct the same from your bills along with applicable interest and penalty.
- c. MAEIPL shall make all necessary statutory deductions such as IT TDS and any other deductions as per applicable laws and statutory rules and issue certificates wherever applicable.
- d. You must submit the copies of Statutory Registration certificates and Permanent Account Number (PAN) within 7 working days from the date of this contract. You shall submit necessary documentary proof of payment of applicable taxes, monthly PF & ESIC by you. All the liabilities towards taxes, PF, minimum wages, ESI, etc. shall lie with you.
- e. You shall submit all required royalty and test reports for materials like steel, cement, concrete, bricks, sand etc.. Charges towards the same shall be borne by you.
- f. Cost towards labour cess shall be deducted from your payables as per MSETCL'S deductions.

7. Liquidated damages:

- a. Failing to complete the entire works in your scope within the time specified in the contract, you shall pay to us as liquidated damages and not as penalty, a sum of half percent (0.5%) of the Contract value of the uncompleted work for each calendar week of delay or part thereof. However, the total liquidated damages for delay under the contract shall be subject to a maximum of ten percent (10%) of the total contract value.
- b. If work is delayed for any reasons whatsoever, you shall request MAEIPL in advance for granting time limit extension clearly mentioning the reasons for delay. Such time limit extensions, if granted, shall be without prejudice to MAEIPL's right to levy liquidated damages. MAEIPL shall duly take into consideration reasons of delay not attributable to you while calculating liquidated damages before releasing retention. However, rate shall not be subject to revision even during extended period of time in any event.
- c. Any LD levied by MSETCL against your scope of work shall be recovered entirely from you.

8. Measurements & variation

- a. All measurements and classifications of works for the purpose of your bills to us shall be carried out jointly by authorized representatives of MAEIPL,

MSETCL and you. The responsibility of coordination for carrying out Joint measurements shall rest on you.

- b. Payment will be made to you only as per duly certified and accepted measurements by MSETCL. You shall submit along with your invoice a copy of Joint Measurement sheet (JMC) duly signed by MSETCL authorized officials with all supporting documents. If any recovery is made by MSETCL after making payments as per JMC, then the same will be passed on to you.
- c. Quantity variation:
 - i. The quantities of different items may vary as per site conditions and requirements of MSETCL as well as MAEIPL. The unit rates shall not be subject to change due to whatsoever variation in quantity.
 - ii. The responsibility of getting due approvals for quantity variation proposal from MSETCL's division office shall rest with you.
 - iii. The payment held up by MSETCL for quantity variation shall be released to you on back-to-back basis within three working days on receipt of corresponding payment from MSETCL by MAEIPL.
 - iv. Quantity variation shall be worked out & submitted by you within 30 days from the date of work order for approval of MSETCL, as significant time is involved in approval of the same. MAEIPL shall not be responsible for any delay in approval by MSETCL.

9. Co-ordination with MSETCL:

- a. You shall be responsible at your own cost for all co-ordination with concerned MSETCL representatives and authorities up-to Circle office (Superintending Engineer level) for execution of work, various approval including but not limited to drawings, plans, layouts, tests, measurements, certifications or in any other respect related to your scope of work.
- b. You shall also coordinate and follow up at your own cost up-to Circle office (Superintending Engineer level) for receipt of payments by MAEIPL towards the work done by you. You shall be responsible for compliance with all requirements that may arise during certification and processing of the bills.
- c. You shall obtain a written clearance from MSETCL prior to starting of each phase of the work at each location, failing which you shall be liable for all the consequences arising from not obtaining such clearance including non-extension in completion period.

d. All incidental expenses towards all above co-ordination shall be to your account.

10. Progress reporting:

- a. You shall work under supervision of MAEIPL as well as MSETCL representatives.
- b. You shall submit detailed weekly progress reports and attend review meetings as and when conducted by MAEIPL and MSETCL.

11. Site Organization:

- a. You shall arrange for all & any categories of workmen required for carrying out this work including watchmen required at the location site to safeguard all materials, tools, plants, partly & wholly finished works. You shall pay the wages as per rules and regulations.
- b. In the event of you failing to pay your workers (or) vendors (or) suppliers (or) subcontractors, MAEIPL reserves the right after having given 7 days' notice of their intention to do so, to pay such workers (or) vendors (or) suppliers (or) subcontractors at their usual rates from money due to or to become due to you on account of the completed work. Such payments shall be witnessed and signed by your representatives if he is present. In the absence of your representatives, such payment to be duly notified to you and after such notification, the MAEIPL representatives certificate of such payments having been made on behalf and will be debited to the account of you which will be final and binding on you. If the said sum is insufficient for recovery from this work, it shall be recovered from any other job executed by you.
- c. All the works will have to be carried out under the qualified & experienced Manager from your end and site supervisors as per the requirement. You should submit the details of authorized Manager and site supervisor within 7 days from the contract / work order issued by MAEIPL. These personnel must be present at site at all times during the course of this contract.
- d. MAEIPL reserves right to terminate the contract at your risk and cost, if in the opinion of the MAEIPL,:
 - i. You have employed inadequate number of workmen to proceed with the work with reasonable speed according to Bar Chart (or)
 - ii. You are not executing work in a satisfactory manner or as per terms and conditions of contract .
 - iii. Your workmen neglect to take instruction or refuse to follow or make alterations suggested by MAEIPL/MSETCL's representative.
 - iv. Breach of any term of this contract

- e. Stores and electricity required for execution of work to be arranged by you.
- f. Water for construction, curing & drinking etc. will be in your scope.
- g. All required tools, plants, equipment, machinery and vehicles required for the work shall be arranged by you at own cost and it should have fitness

certificate and third-party inspection. You shall be responsible for storage of all these tools, plants etc. at the worksite and these should be freely accessible to MAEIPL and MSETCL representatives for inspection as regards its proper functioning. If any tools, plants, equipment, machinery and vehicle are supplied by MAEIPL and/or MSETCL for temporary use at this project, the hire charge shall be recovered from your bills.

- h. No payment will be made for idling labor, machinery, tools & tackles on account of MSETCL approval or any other reason.
- i. You will not further sublet the work awarded to you through this contract without written permission of the Director, MAEIPL.
- j. In case your labours or representatives damage any of the MSETCL's or MAEIPL's or any other agency's property or persons while execution of this contract, you shall own full responsibility of the same and make good the loss.

12. Quality

- a. You shall depute qualified quality engineer at site to take utmost care to ensure best quality of work and ensure compliance with specifications and conditions of tender under reference (a).
- b. The total works, including consumables and workmanship, shall be carried out as per the relevant standards (IS), MSETCL construction practices, applicable quality control documents of MSETCL and/or MAEIPL drawings and documents.
- c. You shall have total responsibility for maintaining the quality of work & shall deploy quality control supervisors to monitor the same at site.
- d. You shall be responsible to procure approved quality of consumables conforming to concerned latest edition of IS.
- e. Any items of work carried out in a bad workmanship or with defective consumables shall be rejected and you shall not have any claim on the rejected work and should immediately re-do or repair the work with their own cost without any claim for cost or extension of time.
- f. If MSETCL and/or MAEIPL found out that the quality of work is not confirming with relevant specifications and standards and approved drawings, it will be your responsibility to rectify the same without any extra cost to MAEIPL. In event of failure to do so, MAEIPL may proceed to have such rectifications get done at your risk and cost.

g. You shall during the duration of the contract, maintain record of work completed as per specification (or) standards and submit to MAEIPL whenever required.

h. You shall be responsible for removal of all defects during execution of work and guarantee (defect liability) period.

13. Guarantee (Defect Liability):

- a. All the terms and conditions related to Guarantee (Defects Liability) for the contract shall be as per tender under reference (a).
- b. Guarantee (defect liability) period shall be 12 (Twelve) months from the date of final acceptance by MSETCL.
- c. During the defects liability period, you shall at your own cost and initiative, correct, repair and/or rectify any and all defects (non-compliances) of the work that may arise due to poor (or) defective consumables and/or workmanship. In events of failure to do so, MAEIPL may proceed to have such rectifications done by others at your risk and cost.

14. Safety:

- a. You shall depute qualified safety engineer at site to ensure adequate safety precautions at site for material and workmen as required under the law of the land and shall be entirely responsible for the complete safety of their workmen as well as workers at the site.
- b. You will ensure that the health, safety and environment (HSE) requirements and norms as per tender conditions, standard practices and applicable laws are complied with. Non-compliance of the same shall have enough reason for termination of this contract.
- c. You shall be duration of the contract, provide and maintain in good order and condition all such protective apparel and equipment (such as helmets, goggles, safety belts, gloves, first aid box etc.) for all your workmen and staff engaged for the contract work as may be required to be used by law and/or by us. You shall ensure that such protective apparel/equipments are worn and used by your workmen and staff.

15. Insurance:

- a. **Workmen Compensation Policy:** You shall take the insurance policy under the workman compensation act to cover such workers, who will be engaged to undertake the jobs covered under the contract of the insurance policy will be given to the company for reference & recorded. The insurance policy shall be kept valid at all times. You shall keep MAEIPL indemnified at all times, against all claims of

compensation under the provisions of workman compensation act 1923 as amended from time to time or any compensation payable under any other law for the time being involved workman engaged by you in carrying out the job involved under work order and without prejudice to make any recovery, MAEIPL shall be entitled to deduct from any money due to or to become due to you, moneys paid or payable by way of compensation as aforesaid or cost or expense in connection with any claims thereto and you under the provision of this clause.

- b. **Third Party Insurance:** Before commencing the execution of the work, you shall take third party insurance policy to insure against any damage or loss or injury which may occur to any property/public property or to any person or an employee or representative of any outside agency/the company engaged or not engaged for the work of company, by or arising out of the execution of the work temporary work or in carrying out of this agreement. For third party insurance policies, you shall be responsible for settlement of claims with the underwriters without any liability on the purchaser/owner and will arrange replacements/rectification expeditiously without a waiting settlement by insurance claim at your own cost.
- c. You shall be responsible for any other insurance required as per tender conditions, MSETCL standard practices and applicable laws.

16. Way leave, Government clearances, Permits: [NOT APPLICABLE].

17. Termination:

- a. MAEIPL reserves the right to terminate or reduce the scope of this order at your risk & cost with 7 days' notice in the following cases:
- i. Unsatisfactory (or) defective (or) sub-standard quality of work or non-compliance with quality clause.
 - ii. Slow progress of the work as per agreed bar chart.
 - iii. Inadequate financial investment as per terms of this work order.
 - iv. Intentional manipulation or corrupt or fraudulent practices or information.
 - v. Disclosure of any of confidential contents or information related to works or contract to any third party.
 - vi. Breach or non-performance of any term of this contract.
 - vii. Involvement or indulging or even attempting illegal, unlawful action or activates or some fraudulent or misuse or abuse any of our equipment.
 - viii. Misconduct or negligence of any of your representatives (or) workmen (or) supervisors in the performance his / their duties.

- ix. Any other reason as per 'Site Organization' clause.
- b. No compensation or damages shall be payable by MAEIPL in whatsoever name in case of termination of contract due to any reason.

- c. In case of termination, joint measurements shall be taken and due payments shall be released as per terms of this contract after completion of all works at your risk & cost.

18. Force Majeure:

- a. Either party shall be under no liability if the execution of this contract is prevented or delayed in whole or in part due to any of the causes beyond the reasonable control of either party due to following events which shall be treated as "Force Majeure": Acts of God, acts of Government, acts of public enemy, war hostility, civil commotion, sabotage, fires, flood, explosions, epidemics, termination of MAEIPL contract by MSETCL.

In the event of force-majeure the affected party shall inform the other party within 15 days from the date of the occurrence of event considered as force majeure. Period of force majeure shall be excluded from the specified time limit accordingly. If the force majeure continues beyond the period of 60 days, both the parties shall decide further course of action including termination of the Contract. No compensation or damages shall be payable by either party in whatsoever name in case of termination of contract due to force majeure conditions.

19. Dispute resolution:

- a. If you are not satisfied with decision of any of the MAEIPL's representatives at site, then you can appeal to the MAEIPL's Managing Director, whose decision shall be final and binding on you.
- b. All differences and/or disputes arising out of the contract shall be first settled amicably. If the referred dispute is not amicably resolved within thirty (30) days from the date of such reference, then the dispute shall be settled through arbitration as per Arbitration and Conciliation Act, 1996 (as amended from time to time). The parties agree that the arbitral tribunal shall consist of a sole arbitrator to be appointed by parties with mutual written consent. In case no agreement is reached within 30 days after notification of arbitration by either party, then the sole arbitrator shall be appointed as per the provisions of Arbitration and Conciliation Act, 1996 (as amended from time to time). The arbitration proceedings shall be conducted in English. The seat & venue for arbitration shall be Mumbai. The award of Arbitrator will be final, conclusive & binding on all the parties to the contract. The cost of arbitration shall be borne by the parties to the disputes, as may be decided by the arbitrator.
- c. The Court of Mumbai shall have exclusive jurisdiction in all the matters arising under the contract.